

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Diana Arreaga	Team: Squad #06	CCRB Case #: 201701355	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Sunday, 02/19/2017 1:40 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 8/19/2018	Precinct: 68
Date/Time CV Reported Sun, 02/19/2017 4:37 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sun, 02/19/2017 4:37 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Laurie Vitello	13644	955784	068 PCT
2. POF Julie Otero	19936	956143	068 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Laurie Vitello	Abuse: Police Officer Laurie Vitello refused to provide her shield number to § 87(2)(b)	A . Unsubstantiated
B . POF Julie Otero	Abuse: Police Officer Julie Otero refused to provide her shield number to § 87(2)(b)	B . Unsubstantiated

Case Summary

On February 19, 2017, § 87(2)(b) filed the following complaint via the Civilian Complaint Review Board (CCRB) website.

On February 19, 2017, § 87(2)(b) called 311 to report that a vehicle had parked in his driveway located on § 87(2)(b) in Brooklyn. At approximately 3:00 p.m., Police Officers Laurie Vitello and Julie Otero of the 68th Precinct arrived to § 87(2)(b)'s residence. Police Officer Vitello exited the vehicle while Police Officer Otero remained inside seated at the driver's seat. After speaking with § 87(2)(b) the officers stated they would not issue a summons for the parked vehicle. § 87(2)(b) informed them that he would file a CCRB complaint against them and requested their shield numbers. § 87(2)(b) asked Police Officer Vitello to provide her shield number and attempted to take a photograph of her shield. Police Officer Vitello placed her hand on her shield and turned her body away from § 87(2)(b) to prevent him from taking a photo of her shield (**Allegation A**). § 87(2)(b) turned towards Police Officer Otero, who was seated in the police vehicle, and attempted to take a photograph of her shield. Police Officer Otero placed her arms in front of her and leaned backwards blocking her shield from view to prevent § 87(2)(b) from taking a photo of her shield (**Allegation B**). Police Officer Vitello entered into the police vehicle and the officers left the location. § 87(2)(b) was not arrested or issued a summons regarding this incident.

Video Footage

No video footage was found regarding this incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected to mediate and wanted an investigation § 87(2)(b)
- According to the NYC Comptroller's Office, as of March 21, 2017, § 87(2)(b) has not filed a Notice of Claim regarding this incident (Board Review 01).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) has no prior CCRB complaints.
- Police Officer Vitello has been a member of the NYPD for three years and has no prior CCRB complaints. She is currently involved in open CCRB case #201609850 (see officer history).
- Police Officer Otero has been a member of the NYPD for three years and has one allegation in one complaint which was not substantiated. § 87(2)(g)

Findings and Recommendations

Explanation of Subject Officer Identification

On February 24, 2017, § 87(2)(b) provided a phone statement (Board Review 03) and was interviewed at the CCRB on February 27, 2017 (Board Review 04). § 87(2)(b) described the officer who exited the vehicle as a possibly half white and half Hispanic female, with a caramel skin complexion either natural or from a skin tan, approximately 5'4" – 5'5" tall,

thin build, approximately 26-28 years old, with auburn/ chestnut brown hair, and in a navy blue uniform. He believed this officer to be Police Officer Vitello of the 68th Precinct as he was able to read this name off her nametag.

§ 87(2)(b) described the officer who remained seated in the police vehicle as a white female, approximately 5'6" – 5'8" tall, heavy build, in her mid-20s, with black hair dyed blonde, and in a navy blue uniform. She believed this officer to be Police Officer Otero of the 68th Precinct as he was able to read this name off her nametag.

An MOS photo and pedigree sheet shows that Police Officer Vitello is a white female, 5'2" tall, with a thin build and brown hair. On March 21, 2017, Police Officer Vitello was interviewed at the CCRB (Board Review 05). She confirmed that she and Police Officer Otero responded to the incident location. She is the only officer with brown hair. § 87(2)(g)

An MOS photo and pedigree sheet shows that Police Officer Otero is a Hispanic female, 5'5" tall, with an average build and blonde hair. On March 7, 2017, Police Officer Otero was interviewed at the CCRB (Board Review 06). She is the only officer with blonde hair. § 87(2)(g)

Allegations not pleaded

- § 87(2)(g)

Allegation A – Abuse of Authority: Police Officer Laurie Vitello refused to provide her shield number to § 87(2)(b)

Allegation B – Abuse of Authority: Police Officer Julie Otero refused to provide her shield number to § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) stated that Police Officer Vitello exited the vehicle while Police Officer Otero remained inside (Board Reviews 03 and 04). Police Officer Vitello approached § 87(2)(b) and stood to the right of him. After speaking with the officers who refused to cite the vehicle parked in front of his driveway, § 87(2)(b) told the officers he would file a CCRB complaint against them and asked them to provide their shield numbers. § 87(2)(b) held his cell phone out in front of Police Officer Vitello and asked her to provide her shield number. He was able to read the name "Vitello" from her name tag. As § 87(2)(b) attempted to take a photo of her shield, Police Officer Vitello placed her left hand on her shield and shifted her body away from § 87(2)(b) while informing him that he could not take a photo of her shield.

As Police Officer Otero was seated in the police vehicle, § 87(2)(b) attempted to take a photo of her shield. He was able to read the name "Otero" from her nametag. Police Officer Otero placed her arms in front of her body and leaned backwards in the driver's seat to prevent § 87(2)(b) from taking a photo of her shield. Police Officer Otero told § 87(2)(b) that he needed to write down her shield number. § 87(2)(b) entered into his house to retrieve pen and paper. Upon exiting, Police Officer Vitello entered into the vehicle and the officers left the location without providing their shield numbers to § 87(2)(b)

Police Officer Vitello stated that both she and Police Officer Otero exited the police vehicle to speak with § 87(2)(b) (Board Review 05). She did not recall if § 87(2)(b) asked her to provide her shield number. She denied placing her hand on her shield to obstruct § 87(2)(b)'s view of her shield and denied refusing to provide her shield number to § 87(2)(b). She did not know if § 87(2)(b) asked Police Officer Otero to provide her shield number and did not know if Police Officer Otero refused to provide it. While in the police vehicle, § 87(2)(b) did not ask the officers to provide their shield number and did not request the officers to wait for him as he obtained writing utensils to take down their information.

Police Officer Otero stated that both she and Police Officer Vitello exited the vehicle to speak with § 87(2)(b) (Board Review 06). § 87(2)(b) requested that she and Police Officer Vitello provide their names and shield numbers. Police Officer Otero pointed to her nametag and shield while stating, "It's right here." She did not recall how long she had pointed to her shield and did not recall if she verbally provided the information. She did not place her hand on her shield to obstruct it and she did not see Police Officer Vitello do so. While entering into the police vehicle, § 87(2)(b) did not tell the officers to wait as he retrieved writing material to take down their information. Police Officer Otero did not recall if § 87(2)(b) requested the officers shield numbers as they were seated in the vehicle. She denied placing her arms in front of her body while she was seated in the driver's seat to prevent § 87(2)(b) from taking down her shield number.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations A and B** be closed as **unsubstantiated**.

Squad: 6

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date